

OFFICE OF THE SECRETARY

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September 3, 2024

The Honorable Ricardo R. Ocampo
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012

Re: LEWIS, DENNIS BURTON
CDCR No: BA3906
Case No: GA097408-01
Date of Sentence: June 29, 2016

Dear Honorable Ricardo R. Ocampo:

The purpose of this letter is to provide the court with the authority to resentence incarcerated person Lewis, BA3906, pursuant to Penal Code (PC) Section 1172.1, Subdivision (a)(1), based upon a change in sentencing law. PC 1172.1(a)(1) provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may consider recalling a previously ordered sentence, provided the new sentence is no greater than the initial sentence. As of June 27, 2018, a court's power to resentence under this section expressly extends to judgments entered after a plea agreement, if in the interest of justice.

Incarcerated person Lewis was sentenced on June 29, 2016, pursuant to a conviction by a jury and sentenced on one count of PC 215(a), Carjacking, with a case enhancement of PC 667(a)(1) Prior Felony Conviction of Serious Offense. Lewis received a total sentence of 14 years and has an Earliest Possible Release Date of March 23, 2026.

The enhancement pursuant to PC 667(a)(1), provides for the imposition of a consecutive five-year enhancement on any person convicted of a serious felony for each previous conviction of a serious felony (or other qualifying conviction) brought and tried separately. Courts were previously barred from striking prior serious felony convictions for purposes of enhancement under this section. However, effective January 1, 2019, courts are now authorized to exercise their discretion to strike prior serious felony convictions for purposes of enhancement under this section, or to strike the punishment for the enhancement under this section, pursuant to PC 1385.

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The incarcerated person's case factors have been compiled and thoroughly reviewed. In light of the court's newfound authority, and after personally reviewing their commitment offense and in-prison conduct, I recommend that Lewis' sentence be recalled and that they be resentenced in accordance with PC 1172.1(a)(1).

Sincerely,

A handwritten signature in blue ink, appearing to read 'Jeff Macomber', with a long horizontal stroke extending to the right.

JEFF MACOMBER
Secretary

Enclosures:
Cumulative Case Summary
Abstract of Judgment
Minute Order
Information Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office